

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2099

By: Menz

AS INTRODUCED

An Act relating to housing; defining terms; providing for creation of Oklahoma Affordable Housing Commission; prescribing membership; providing for utilization of Oklahoma Affordable Housing Commission Revolving Fund; providing for utilization of resources; creating the Oklahoma Affordable Housing Commission Revolving Fund; providing for revenue sources; providing for expenditures; prohibiting expenditures prior to designated date; requiring adoption of administrative rules; providing for transfer of unencumbered funds; providing for codification; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 6401 of Title 74, unless there is created a duplication in numbering, reads as follows:

As used in this act:

1. "Extremely low income household" means income not in excess of thirty percent (30%) of the area median income, adjusted for the

1 size of the household, as determined by the United States Department
2 of Housing and Urban Development (HUD);

3 2. "Very low income household" means a household income of more
4 than thirty percent (30%) of the area median income but no more than
5 fifty percent (50%) of the area median income, adjusted for the size
6 of the household, as determined by the United States Department of
7 Housing and Urban Development;

8 3. "Low income household" means a household income of more than
9 fifty percent (50%) of the area median income but no more than
10 eighty percent (80%) of the area median income, adjusted for the
11 size of the household, as determined by the United States Department
12 of Housing and Urban Development;

13 4. "Moderate income household" means a household income of more
14 than eighty percent (80%) of the area median income but no more than
15 one hundred twenty percent (120%) of the area median income,
16 adjusted for the size of the household, as determined by the United
17 States Department of Housing and Urban Development; and

18 5. "Middle income household" means a household that has an
19 income of more than one hundred twenty percent (120%) of the area
20 median income but no more than one hundred sixty percent (160%) of
21 the area median income, adjusted for the size of the household, as
22 determined by the United States Department of Housing and Urban
23 Development.
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1 SECTION 2. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 6402 of Title 74, unless there
3 is created a duplication in numbering, reads as follows:

4 A. There is hereby created the Oklahoma Affordable Housing
5 Commission. The Commission shall be composed of sixteen (16)
6 members. The members shall serve as follows:

7 1. Eight members shall be appointed by the President Pro
8 Tempore of the Oklahoma State Senate:

- 9 a. one shall be a Senator from the majority party who
10 shall serve as co-chair of the Commission,
- 11 b. one shall be a Senator from the minority party who
12 shall serve as co-vice chair of the Commission,
- 13 c. one shall be a representative of an American Indian
14 Tribe who provides affordable housing in rural areas,
15 whose first term shall be for one (1) year, and then
16 renewable for three-year terms thereafter,
- 17 d. one shall be a representative from a low income and
18 moderate to low income population-serving financial
19 institution (A Community Development Financial
20 Institution as defined by the Federal Reserve) whose
21 first term shall be for two (2) years, and then
22 renewable for three-year terms thereafter,
- 23 e. one shall be a representative from a Community Housing
24 Development Organization (CHDO), as determined by the

1 United States Department of Housing and Urban
2 Development, whose first term shall be for two (2)
3 years, and then renewable for three-year terms
4 thereafter,

5 f. a representative of building service or construction
6 trades whose first term shall be for two years, and
7 then renewable for three-year terms thereafter,

8 g. one shall be from the Oklahoma Department of Commerce
9 Community Development Division, or his or her
10 designee, whose first term shall be for three (3)
11 years, and then renewable for three one-year terms
12 thereafter, and

13 h. one shall be an Oklahoma representative of the United
14 States Department of Agriculture (USDA);

15 2. Eight members shall be appointed by the Speaker of the
16 Oklahoma House of Representatives:

17 a. one shall be a House member from the majority party
18 who shall serve as co-chair of the Commission,

19 b. one shall be a House member from the minority party
20 who shall serve as co-vice chair of the Commission,

21 c. one shall be a representative from a not-for-profit
22 organization who serves low-income Oklahomans
23 experiencing difficulty in obtaining affordable
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- housing, whose first term shall be for one (1) year,
and then renewable for three-year terms thereafter,
- d. one of whom shall be a representative from an
organization who assists special populations (elderly,
disabled, veterans, or children transitioning out of
foster care) in obtaining affordable housing, whose
first term shall be for two (2) years, and then
renewable for three-year terms thereafter,
- e. one shall be a representative from an urban housing
authority whose first term shall be for two (2) years,
and then renewable for three-year terms thereafter,
- f. the Executive Director of the Oklahoma Housing Finance
Agency (OHFA) or designee whose first term shall be
for two (2) years, and then renewable for three-year
terms thereafter,
- g. one shall be a representative from an urban housing
authority whose first term shall be for two (2) years,
and then renewable for three-year terms thereafter,
and
- h. one shall be a representative of an Oklahoma rural
housing authority whose first term shall be for two
(2) years, and then renewable for three-year terms
thereafter.

1 B. The Commission shall utilize the Oklahoma Affordable Housing
2 Commission Revolving Fund as authorized in Section 3 of this act.

3 C. The Commission shall utilize the resources available to it
4 in order to address the needs of extremely low income households,
5 very low income households, low income households, moderate income
6 households, and middle income households in order to promote a
7 condition in which suitable housing is available to as many persons
8 as possible.

9 SECTION 3. NEW LAW A new section of law to be codified
10 in the Oklahoma Statutes as Section 6404 of Title 74, unless there
11 is created a duplication in numbering, reads as follows:

12 A. There is hereby created in the State Treasury a revolving
13 fund to be designated as the "Oklahoma Affordable Housing Commission
14 Revolving Fund", which shall consist of all monies appropriated,
15 transferred, or otherwise designated to the fund by law. The
16 revolving fund shall be a continuing fund, not subject to fiscal
17 year limitations, and shall be under the administration of the
18 Oklahoma Affordable Housing Commission and shall be budgeted and
19 expended in accordance with the provisions of subsection B of this
20 section for the purpose of improving the stock and affordability of
21 Oklahoma housing.

22 B. No funds shall be budgeted or expended from the Oklahoma
23 Affordable Housing Commission Revolving Fund prior to July 1, 2025,
24 or prior to the approval by the Legislature of promulgated permanent

1 rules by the Commission pursuant to the provisions of the
2 Administrative Procedures Act.

3 C. The Oklahoma Affordable Housing Commission shall promulgate,
4 pursuant to the provisions of the Administrative Procedures Act,
5 permanent rules subject to approval by the Legislature, to
6 implement:

7 1. An initial comprehensive Oklahoma Affordable Housing
8 environmental scan and needs assessment;

9 2. A comprehensive Oklahoma Affordable Housing annual report
10 and action plan;

11 3. Details of the Commission's general duties;

12 4. Reporting requirements of the Commission to the Legislature;

13 5. Evaluate and make recommendations to the Legislature on
14 abatement and exemption incentives to support the development of
15 more affordable housing; and

16 6. Any other rules necessary to carry out the purpose and
17 mission of the Commission as expressed in this act.

18 D. All unencumbered funds remaining in the Oklahoma Affordable
19 Housing Commission Revolving Fund upon the expiration of the
20 Oklahoma Affordable Housing Commission shall be transferred to the
21 State Treasurer for deposit in the General Revenue Fund.

22 SECTION 4. This act shall become effective July 1, 2025.

23 SECTION 5. It being immediately necessary for the preservation
24 of the public peace, health or safety, an emergency is hereby

1 declared to exist, by reason whereof this act shall take effect and
2 be in full force from and after its passage and approval.

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